

22TRCV01589 22TRCV01589

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

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Case Number: 22TRCV01589 Hearing Date: July 7, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

LUNCH

INC.,

Plaintiff,

Case No.:

22TRCV01589

vs.

[Tentative]

RULING

MAKAI

SOLUTIONS, et al.,

Defendants.

Hearing

Date: July

7, 2026

Moving

Parties: Plaintiff and judgment creditor Lunch Inc.

Responding

Party: None

Motion

for Order Releasing Deposited Funds

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED in part.

The

Court orders that the court clerk give notice to judgment debtor Makai of the City's deposit of funds.

BACKGROUND

On December 28, 2022, Lunch Inc. filed a complaint against Makai Solutions and Daniel Petersen for (1) breach of contract, (2) breach of covenant of good faith and fair dealing, (3) conversion, (4) Uniform Voidable Transactions Act, (5) constructive fraud, (6) Penal Code 496, (7) unjust enrichment, (8) account stated, and (9) declaratory relief.

On January 6, 2023, the Court entered an amended right to attach order and order for issuance of writ of attachment after hearing.

On March 16, 2023, a default was entered against Makai Solutions.

On July 14, 2023, a default was entered against Daniel Petersen.

On July 27, 2023, a clerk's judgment was entered against defendants for \$308,461.30.

On August 30, 2023, the Court entered an order on judgment creditor's ex parte application directing San Bernardino Sheriff Dept. to release the attached funds in the amount of \$114,528.23 to judgment creditor's counsel of record and that the undertaking bond filed by judgment creditor on January 4, 2023 be released.

LEGAL AUTHORITY

CCP

§708.750 states: "If money is owing and unpaid to the judgment debtor by a public entity other than a state agency, the judgment creditor shall file the abstract or certified copy of the judgment and the affidavit with the auditor of the public entity or, if there is no auditor, with the official whose duty corresponds to that of auditor. To discharge the claim of the judgment debtor, the auditor or other official shall (1) deposit with the court by a warrant or check payable

to the court, the amount due the judgment debtor (after deducting an amount sufficient to

reimburse the public entity for any amounts advanced to the judgment debtor or owed by

the judgment debtor to the public entity) required to satisfy the money judgment as shown

by the affidavit in full or to the greatest extent and (2) pay the balance thereof, if any, to the judgment debtor."

CCP §708.770 states:

"(a) Except as provided in subdivision (g), promptly after deposit with the court by the public entity, the court clerk shall cause a notice of deposit

to be served on the judgment debtor. Service shall be made personally or by mail."

DISCUSSION

Judgment creditor Lunch Inc. requests an order releasing deposited funds in the amount of \$16,275.88 to Lunch Inc. pursuant to CCP §§708.750, et seq. and 187. Alternatively, judgment creditor requests an order instructing the court clerk to provide written notice to judgment debtor Makai Solutions of funds deposited with the Court pursuant to CCP §708.770.

Lunch explains that after judgment was entered, it commenced efforts to enforce the judgment and, in September 2023, it was informed that Makai had entered into a contract to provide services with the City of San Francisco. On September 15, 2025, Lunch served a declaration under CCP §708.750 on the City concurrent with a letter summarizing the procedure under CCP §708.750, instructing the City to deposit funds owed to Makai with Los Angeles Superior Court. On June 20, 2024, Lunch received an email from City and County of San Francisco informing Lunch that two checks had been sent to the Torrance courthouse and cashed, in the amount of \$7097.96 and \$9177.92. Lunch asserts that on November 7, 2024,

Lunch's counsel took the deposition of judgment debtor Danny Peterson where counsel discussed the deposited funds, noting that Peterson did not express any objections to the City's deposit with the Court. On April 24, 2025, Lunch's counsel talked with Peterson wherein counsel discussed the deposited funds, noting again that Peterson did not express any objection to the City's deposit. See Tiffany Chukiat decl.; Jon Atabek decl. Lunch contends that despite the cashing of the deposited funds, Lunch is unaware if the court clerk sent written notice to Makai under CCP §708.770 of the deposited funds, but argues that as stated above, judgment debtor Peterson was aware of the deposited funds by November 2024 and has not made any claim of exemption.

There is no opposition.

As noted by the judgment creditor, it does not appear that the court clerk gave notice to judgment debtor Makai of the City of San Francisco's deposit of funds as required under CCP §708.770. The clerk is ordered to do so.

ORDER

The motion is GRANTED IN PART. The Court orders that the court clerk give notice to judgment debtor Makai of the City's deposit of funds.

Moving party is to give notice of ruling.